

Trademark Electronic Application System

Under the Paperwork Reduction Act of 1995 no persons are required to respond to a collection of information unless it displays a valid OMB control number.
PTO Form 1957 (Rev 10/2011)
OMB No. 0651-0050 (Exp. 09/20/2020)

Response To Office Action

TEAS - Version 7.1

GENERAL FORM INFORMATION:

- **TIMEOUT WARNING:** After 25 minutes of [inactivity](#), you will be prompted to continue your session. If you do not continue within 5 minutes, the session will end, you will be logged out of your USPTO.gov account, and you will lose any unsaved data in the form. Please have all of your information ready before you start.
- **DO NOT USE YOUR BROWSER BACK/FORWARD BUTTONS:** Use only the navigation buttons at the bottom of each page.
- **TIPS ON USING THIS FORM MOST EFFECTIVELY:** Click on any underlined (hyperlinked) terms for additional information.
- **REQUIRED FIELDS:** All have an **ASTERISK (*)**, and the form will not validate if these fields are not filled-out.

TO ACCESS THE RESPONSE FORM:

STEP 1: CHECK STATUS.

To use this form, the "Current Status" of your application must be "A Non-final Action has been mailed." Use the [Trademark Status & Document Retrieval \(TSDR\)](#) to confirm the status before proceeding. If the application is not in the correct status, you must wait until the status is updated (usually 48-72 hours after receiving an email notice that an Office action has issued). Otherwise, you will receive an error message when you click the "Continue" button at the bottom of the page.

STEP 2: ENTER APPLICATION SERIAL NUMBER BELOW OR ACCESS PREVIOUSLY FILLED-OUT/SAVED FORM.

* [Serial Number:](#) (Do not enter serial number if you are accessing your saved form.)

OR

To upload a previously saved form file, first review the [TEAS Help instructions for accessing previously saved data](#) and then use the "Browse..." button below to access the form file saved on your computer. **WARNING:** Failure to follow the TEAS Help instructions will result in the inability to edit your data.

Do **NOT** upload or attach any other file(s) (for example, a specimen or foreign registration certificate) using the button below. You must upload other attachments within the proper section of the actual form, after answering "Yes" to the appropriate wizard question(s) on the next page.

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Contacts:
For **general trademark information**, email TrademarkAssistanceCenter@uspto.gov, or call 1-800-786-9199.
For help in resolving **technical glitches**, email teas@uspto.gov. Include your phone number in your email, so we can talk to you directly, if necessary.

Tips:

Use the **Continue** button at the bottom of each page to move through the form. Fill out all fields for which information is known. Fields with a * symbol are mandatory and must be completed.

Choose a signature method for signing the form on the Signature Page.

Review the data you entered by accessing the Input Table on the Validation Page. Confirm that all information is displayed properly. Return to the appropriate section of the form and make any needed corrections before submission of the response.

Click on the **Pay/Submit button** at the bottom of the Validation Page and provide the payment required (if any) to submit the form. When successful you will be navigated to a confirmation screen.

An email acknowledging receipt of the submission (a filing receipt) will be sent to the Primary Email Address for Correspondence.

Status Check:

The status of the filing is available in the [Trademark Status & Document Retrieval System \(TSDR\)](#) 72 hours after filing.

Serial Number	
Mark	
Owner/Holder Information	
Attorney Information	
Primary Email Address for Correspondence Warning: This is the email address currently of record in the USPTO database. If it is not the email address of either the appointed attorney, if any, otherwise the owner, it must be updated.	
Secondary Email Address(es) for (Courtesy Copies)	

STEP 3. REVIEW ALL QUESTIONS BELOW AND SELECT THE APPROPRIATE RADIO BUTTON. At least one answer must be "Yes" or your response will be **blank**.

A RESPONSE WITH ONLY YOUR SIGNATURE IS NOT ACCEPTABLE. Merely providing a response with a signature and no other information, or authorizing the examining attorney to make any necessary changes to the application *without specifying the exact changes*, is not a proper response to the Office action (except if the *only* issue raised was that the original filing was unsigned, improperly signed, or lacked the required declaration language).

1. Do you need to respond to a refusal to register your mark, including (but not limited to) a possible finding that your mark appears to be:

- likely to cause confusion with another mark(s)
- merely descriptive (or generic) or deceptively misdescriptive
- primarily merely a surname
- geographically descriptive or geographically deceptively misdescriptive
- deceptive
- functional
- multiple marks instead of a single mark
- a protected symbol (e.g., a flag, the Red Cross)
- used in a manner that would not be perceived as actually being a trademark/service mark*

You must answer "Yes" to this question to [submit your arguments against the refusal](#), and if necessary, attach [supporting evidence](#), to attempt to convince the examining attorney to withdraw the refusal.

*NOTE: To submit a "substitute specimen" to overcome a refusal, also answer "Yes" to #2.

☐ Yes ☒ No

2. Do you need to do any of the following:

- [change/delete an existing class number](#)*
- [modify the identification of goods/services/the nature of the collective membership organization](#) **
- [change filing basis](#)
- [add/modify dates of use](#)
- [submit a new or substitute specimen](#)
- [submit a foreign registration certificate or proof of renewal of the foreign registration](#)

*NOTE: To ADD a new class, answer "Yes" to #6, and to pay fee(s) for additional class(es), answer "Yes" to #7.

NOTE: You may only modify the identification of goods/services/the nature of the collective membership organization to clarify or limit the goods/services/the nature of the collective membership organization; adding to or broadening the scope of the goods/services/nature of the collective membership organization is **not permitted.

☐ Yes ☒ No

3. Do you need to add or delete (withdraw) any of the following:

NOTE: ALL of the below will display within the "Additional Statement(s)" section of the form, *even when only one is appropriate and should be selected.*

- Disclaimer
- Colors claimed as feature of the mark
- Description of the mark (including nature and location of color(s), if appropriate)*
- Stippling statement
- Claim of prior registration(s)
- Translation/Transliteration
- Meaning and/or significance of wording, letter(s), and/or numeral(s) in the mark
- Section 2(f) claim
- Consent to register name(s), likeness(es), signature(s) of individual(s)
- Supplemental Register amendment
- Concurrent use claim
- Miscellaneous statement**

*NOTE: Do **not** use this section if you are also answering "Yes" to Question #4, *below*, which will then provide this field. Use this **only** if adding or modifying an existing description *but not attaching a new mark image*.

NOTE: The miscellaneous statement field includes the ability to attach a file, for example, to provide requested product literature. Do **not use this section for attachments where a specific different section for the purpose already exists, for example, submission of a substitute specimen in #2, *above*. This field may also be used to request **DELETION (WITHDRAWAL)** of an additional statement currently of record, for example, a disclaimer (see specific instructions within form).

☐ Yes ☒ No

4. Do you need to submit a new drawing of the mark, either to [change the mark](#) itself or [submit a better quality image](#)?

NOTE: A material change to your mark is never permissible. Only minor changes in the mark are *sometimes* permitted. A drawing must be in JPG format.

☐ Yes ☒ No

5. Do you need to correct or change the [owner's/holder's name or entity information](#) or update the owner's/holder's street address, email address, phone or fax number(s)?

The email address of the trademark owner/holder is the **Primary Email Address for Correspondence** if an attorney is NOT appointed. **Secondary Email Address(es)** for courtesy copies can be provided.

☐ Yes ☒ No

6. Do you need to [ADD a new class\(es\) of goods/services/a collective membership organization](#) ?

NOTE: You may **not** add class(es)/goods/services, or any descriptive language to an identification to broaden the scope of the current identification of the goods/services/collective membership organization.

NOTE: To pay the fee(s) for adding class(es), answer "Yes" to #7. To change an existing classification number or delete goods/services/a collective membership organization, answer "Yes" to #2.

☐ Yes ☒ No

If the answer is Yes, enter the number of classes:

7. Do you need to submit a fee for: (1) an existing or additional class of goods/services/a collective membership organization; (2) [failing to satisfy the requirements of TEAS Plus](#); and/or (3) processing a payment that has been [refused or charged back](#)?

☐ Yes ☒ No

8. Is a [newly appearing U.S.-licensed attorney](#) filing this form or do you need to update the bar information, email address, street address, phone or fax number for an already appointed attorney?

Foreign-domiciled owners /holders must have a U.S.-licensed attorney represent them before the USPTO in any application-or registration-related filing. Information about hiring a U.S.-licensed attorney can be found on the USPTO website.

☐ Yes ☒ No

9. Do you need to submit a [Signed Declaration](#) to verify an application?

NOTE: Answer "Yes" to this question if the application was unsigned, improperly signed, or lacked the required declaration language.

☐ Yes ☒ No

STEP 4: ACCESS ACTUAL RESPONSE FORM.

Click on the "Continue" button below to access the response form for entering your information.

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[ARGUMENT\(S\)](#)

Should you wish to present your argument as a PDF attachment, rather than as direct text entry, you may do so within the "Evidence Section," *below*.

[Click here to Enter Argument\(s\)](#)

[EVIDENCE](#)

Evidence

[Evidence File](#)

Click on the 'Attach' button below to select the file from your computer. Visit the USPTO's website for [information on acceptable file sizes and formats](#).

Instructions: Attach **ONLY** supporting evidence or the response to a refusal to register here, not the entire response to Office action. Each portion of this form serves a specific purpose for data processing reasons. Failure to follow this instruction will cause significant delays in the processing and review of your filing.

[Click here to Attach Evidence](#) 0 file(s) attached

[Describe what the evidence submitted consists of:](#)

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CLASSIFICATION AND LISTING OF GOODS/SERVICES/COLLECTIVE MEMBERSHIP ORGANIZATION

Amending the Original Class(es) in the Application

Enter information for the Original Class

☐ Check here to delete the following class of goods/services/collective membership organization from your application. If checked, it is not necessary to modify the current class below.

☐ Check here to modify the current classification number; listing of goods/services/the nature of the collective membership organization; dates of use; and/or filing basis; or to submit a substitute specimen, a foreign registration certificate, or proof of renewal of a foreign registration. If not checked, the changes will be ignored.

Original International Class :

*International Class: (Enter class number 001- 045, A, B and 200)

*Listing of Goods/Services/Collective Membership Organization

[NOTE: Do not enter a Class or any other code in the field below. You must enter only the common commercial name for the specific goods/services/nature of the collective membership organization associated with the mark. Also, do not include any html or other programming code or language that may create links in the listing of goods/recitation of services/description of the collective membership organization]. For more information about acceptable language for the goods/services, see the USPTO's on-line [Goods and/or Services Manual](#). If entering multiple listings of goods/services, please separate with a semi-colon (;), NOT a comma.

WARNING: Your entry may NOT exceed the scope of your current identification. While you may modify the current listing to clarify, limit, or remove goods/services/the collective membership organization, you may NOT at this point ADD or BROADEN goods or services or otherwise amend the goods/services/nature of the collective membership organization beyond the scope of that in the current identification. A new filing would be required to cover any new goods/services/or broadening the nature of the collective membership organization not within the scope of the current identification.

WARNING: Registration Subject to Cancellation for Fraudulent Statements

Statements made in filings to the USPTO must be accurate; inaccuracies could result in the cancellation of a trademark registration. For example, an applicant's lack of a bona fide intention to use the mark with all goods/services included in an application, or the lack of use on all goods/services for which use is claimed, could jeopardize the validity of the resulting registration.

☒ **Filing Basis Section 1(a)**, Use in Commerce: *For all applications:* The mark is in use in commerce and was in use in commerce as of the application filing date. The provided specimen shows the mark in use in commerce (see specimen statement below). *For a collective trademark, collective service mark, collective membership mark, or certification mark application:* The applicant is exercising legitimate control over the use of the mark in commerce and was exercising legitimate control over the use of the mark in commerce as of the application filing date. *For a certification mark application:* The applicant is not engaged in the production or marketing of the goods/services to which the mark is applied, except to advertise or promote recognition of the certification program or of the goods/services that meet the certification standards of the applicant. **WARNING: If you filed your original application under Section 1(b), Intent to Use, do not use this form to submit dates of use and a specimen, unless responding to a specimen issue created by an already filed Allegation of Use. Otherwise, you must file the specific Allegation of Use form (Statement of Use/Amendment to Allege Use). Filing an Allegation of Use is not a proper response to an Office action.**

Date of First Use of Mark Anywhere at least as early as (MM/DD/YYYY)

Date of First Use of Mark Commerce at least as early as (MM/DD/YYYY)

Specimen File

Watch the TMIN [video explaining what is meant by the term "specimen"](#). Visit the USPTO's website for [information on acceptable file sizes and formats](#).

Instructions: Attach ONLY the specimen here, not the entire response to Office action. Each portion of this form serves a specific purpose for data processing reasons. Failure to follow this instruction will cause significant delays in the processing and review of your filing.

[Click here to Attach Specimen\(s\)](#) 0 file(s) attached

☐ Check this box if you are [mailing a non-traditional specimen](#) using USPS because it meets the qualifications explained in the hyperlink. Sound and motion specimens are not non-traditional and MUST be submitted using this form. Failure to submit a required specimen through TEAS may result in processing delays and additional fees.

[Describe what the submitted specimen consists of:](#)

☐ * **CHECK THIS BOX IF SPECIMENS ARE NOW BEING SUBMITTED OR WERE PREVIOUSLY SUBMITTED UNVERIFIED IN THE INITIAL APPLICATION.**

Checking this box will automatically add the following declaration language to the form:

"The substitute (or new, or originally submitted, if appropriate) specimen(s) was/were in use in commerce at least as early as the filing date of the application" [for an application based on Section 1(a), Use in Commerce] OR "The substitute (or new, or originally submitted, if appropriate) specimen(s)

was/were in use in commerce prior either to the filing of the Amendment to Allege Use or expiration of the filing deadline for filing a Statement of Use" [for an application based on Section 1(b) Intent-to-Use]. OR "The attached specimen is a true copy of the specimen that was originally submitted with the application, amendment to allege use, or statement of use" [for an illegible specimen]. The signatory being warned that willful false statements and the like are punishable by fine or imprisonment, or both, under 18 U.S.C. §1001, and that such willful false statements and the like may jeopardize the validity of the application or submission or any registration resulting therefrom, declares that all statements made of his or her own knowledge are true and all statements made on information and belief are believed to be true.

☐ **Filing Basis Section 1(b), Intent to Use:** *For a trademark or service mark application:* The applicant believes the applicant is entitled to use the mark in commerce on or in connection with the goods or services specified in the application; the applicant has a bona fide intention to use the mark in commerce and had a bona fide intention to use the mark in commerce as of the application filing date. *For a collective trademark, collective service mark, collective membership mark, or certification mark application:* The applicant has a bona fide intention, and is entitled, to exercise legitimate control over the use of the mark in commerce and had a bona fide intention, and was entitled, to exercise legitimate control over the use of the mark in commerce as of the application filing date. *For a certification mark application:* The applicant will not engage in the production or marketing of the goods/services to which the mark is applied, except to advertise or promote recognition of the certification program or of the goods/services that meet the certification standards of the applicant.

WARNING: Do NOT check the box to add a Section 1(b) filing basis if your goods/services/collective membership organization for this class is/are already based on Section 1(a), use in commerce. Filing under Use and Intent to Use is not permitted for the same goods/services/collective membership organization.

Additional Filings: Fee(s) will be required to file either the [Statement of Use form or Extension Request](#), prior to registration, after you begin the required use of the mark in commerce.

☐ **Filing Basis Section 44(d), Priority based on foreign filing:** *For a trademark or service mark application:* The applicant believes the applicant is entitled to use the mark in commerce on or in connection with the goods/services specified in the application; the applicant has a bona fide intention to use the mark in commerce and had a bona fide intention to use the mark in commerce as of the application filing date; and the applicant asserts a claim of priority based upon a foreign application. *For a collective trademark, collective service mark, collective membership mark, or certification mark application:* The applicant has a bona fide intention, and is entitled, to exercise legitimate control over the use of the mark in commerce; the applicant had a bona fide intention, and was entitled, to exercise legitimate control over the use of the mark in commerce as of the application filing date; and the applicant asserts a claim of priority based upon a foreign application. *For a certification mark application:* The applicant will not engage in the production or marketing of the goods/services to which the mark is applied, except to advertise or promote recognition of the certification program or of the goods/services that meet the certification standards of the applicant.

Foreign Application Number

Note: The USPTO database can only store 19 characters for this field. You should adjust your entry if possible, eliminating any unnecessary leadings 0s or country abbreviations, for example.

Date of Foreign Filing

(MM/DD/YYYY)

Country/Region/Jurisdiction/U.S. Territory of Foreign Application

- ☒ At this time, the applicant intends to rely on Section 44(e) as a basis for registration and requests that the application be suspended to await the submission of the foreign registration. If ultimately the applicant does not rely on §44(e) as a basis for registration, a valid claim of priority may be retained.
- ☐ At this time, the applicant has another basis for registration (Section 1(a) or Section 1(b)) and does NOT intend to rely on Section 44(e) as the basis for registration, but is only asserting a valid claim of priority. The application should not be suspended to await the submission of the foreign registration.

☐ **Filing Basis Section 44(e), Based on Foreign Registration:** *For all applications:* The applicant attaches a copy of the foreign registration certificate or proof of renewal of such registration, and an English translation if such documents are in a foreign language. *For a trademark or service mark application:* The applicant believes the applicant is entitled to use the mark in commerce on or in connection with the goods/services specified in the application; the applicant has a bona fide intention to use the mark in commerce and had a bona fide intention to use the mark in commerce as of the application filing date. *For a collective trademark, collective service mark, collective membership mark, or certification mark application:* The applicant has a bona fide intention, and is entitled, to exercise legitimate control over the use of the mark in commerce; and the applicant had a bona fide intention, and was entitled, to exercise legitimate control over the use of the mark in commerce as of the application filing date. *For a certification mark application:* The applicant will not engage in the production or marketing of the goods/services to which the mark is applied, except to advertise or promote recognition of the certification program or of the goods/services that meet the certification standards of the applicant.

Foreign Registration Number

Note: The USPTO database can only store 19 characters for this field. You should adjust your entry if possible, eliminating any unnecessary leadings 0s or country abbreviations, for example.

Foreign Registration Date

(MM/DD/YYYY)

Date Foreign Registration Renewed
(if applicable)

(MM/DD/YYYY)

Expiration Date of Foreign Registration

(MM/DD/YYYY)

Country/Region/Jurisdiction/U.S. Territory of Foreign Registration

Instructions:

[Attach the Foreign Registration/Proof of Renewal](#) here, not the entire filing. Each portion of this form serves a specific purpose for data processing reasons. Failure to follow this instruction will cause significant delays in the processing and review of your filing.

Visit the USPTO's website for [information on acceptable file sizes and formats](#).

Click here to Attach Foreign Registration(s) 0 file(s) attached

☐ Check here if the foreign registration that is the basis of the U.S. application under Section 44(e) includes a claim of standard characters or the country of origin's standard character equivalent.

WARNING: If this box is NOT checked, then the designation of the mark as "Standard Character Mark" will automatically be changed from "YES" to "NO."

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ADDITIONAL STATEMENT(S)

Watch the TEAS Nuts and Bolts [instructional video on the Additional Statements section of the form](#).

Tip: Use the MISCELLANEOUS STATEMENT field to **delete/withdraw** a statement that is already in the application record (e.g., withdraw a disclaimer).

DISCLAIMER: No claim is made to the exclusive right to use apart from the mark as shown.

- ☐ **STIPPLING AS A FEATURE OF THE MARK:** The stippling is a feature of the mark and does not indicate color.
- ☐ **STIPPLING FOR SHADING:** The stippling is for shading purposes only.

ACTIVE PRIOR REGISTRATION(S): The applicant claims ownership of active prior U.S. Registration Number(s) , , .

NOTE: Entry must not include any commas, and must be 7 numerals long (if necessary, add leading 0's to number, e.g., 0086417).

☐ and others: Check here to indicate there are additional active prior U.S. Registration Number(s).

TRANSLATION:

The English translation of in the mark is .

The wording has no meaning in a foreign language.

TRANSLITERATION: (NOTE: Not required for *any* standard character marks.)

The non-Latin characters in the mark transliterate to and this means in English.

The non-Latin characters in the mark transliterate to and this has no meaning in a foreign language.

SIGNIFICANCE OF WORDING, LETTER(S), OR NUMERAL(S):

appearing in the mark means or signifies or is a term of art for in the relevant trade or industry or as used in connection with the goods/services/collective membership organization listed in the application.

appearing in the mark has no significance nor is it a term of art in the relevant trade or industry or as used in connection with the goods/services/collective membership organization listed in the application, or any geographical significance.

The word(s) has no meaning in a foreign language.

INDICATE THE NATURE OF THE §2(f) CLAIM OF ACQUIRED DISTINCTIVENESS

☐ §2(f) Whole ☐ §2(f) In Part

Note: The declaration required to support a Section 2(f) (or in part) claim will automatically appear at the end of this form.

NAME(S), PORTRAIT(S), SIGNATURE(S) OF INDIVIDUAL(S):

The name(s), portrait(s), and/or signature(s) shown in the mark identifies , whose consent(s) to register is made of record.

[Click here to Attach/Remove Consent\(s\)](#)

- ☐ The name(s), portrait(s), and/or signature(s) shown in the mark does not identify a particular living individual.
- ☐ **SUPPLEMENTAL REGISTER:** The applicant seeks registration of the mark on the Supplemental Register (i.e., a change of the words 'Principal Register' to 'Supplemental Register').

CONCURRENT USE: Enter the [appropriate concurrent use information](#) in the text box immediately below. WARNING: To assert concurrent use, you **must:** (1) have assigned a Section 1(a) filing basis, which indicates you are using, or, if appropriate, exercising legitimate control over the use of, the mark in commerce; AND (2) (i) intend to initiate a legal proceeding before the Trademark Trial and Appeal Board or have obtained a Board determination from a prior proceeding establishing that you are entitled to a concurrent registration; or (ii) have obtained a final court determination establishing your concurrent right to use the same or similar mark in commerce in a limited geographic area.

- ☐ **MISCELLANEOUS STATEMENT:** Enter information here ONLY if no other section of the form is appropriate. **FAILURE TO FOLLOW THIS INSTRUCTION WILL CAUSE SIGNIFICANT DELAYS IN THE PROCESSING AND REVIEW OF YOUR SUBMISSION.** If you wish to **DELETE (WITHDRAW)** a statement previously submitted, you may indicate that here through an instruction. e.g., "Please delete the disclaimer currently of record."
- For collective trademark/service mark/membership applications based on Section 1(a), use of the mark in commerce:** If you have not previously submitted an acceptable statement indicating your method of control for all identified classes, use the text box below to indicate your method of control (the following format is suggested: the applicant controls the members use of the mark [indicate method of control, e.g., as specified in the applicant's bylaws or other written provisions, etc.]).
- For certification mark applications based on Section 1(a), use of the mark in commerce:** If you have not previously submitted an acceptable copy of the applicable certification standards, click on the gray bar below labeled Click here to Attach/Remove Miscellaneous to attach a copy of the standards that you use to determine whether particular goods or services will, in fact, be certified.
- For all certification mark applications:** If you have not previously submitted an acceptable statement of the characteristic(s), standard(s), or feature(s) that is (or will be) certified by the mark for all identified classes, use the text box below to enter a statement of the characteristic(s), standard(s), or other feature(s) that you are (or will be) certifying about the identified goods/services. The following format is suggested: The certification mark, as used or intended to be used by persons authorized by the certifier, certifies or is intended to certify that the goods and/or services provided have [specify].

[Click here to Attach/Remove Miscellaneous](#)

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Mark Update

Note: While minor changes in the mark are *sometimes* permitted, any [material alteration](#) will NOT be permitted and will result in a refusal being issued on that ground.

☐ If you have read and understood the above notice, you must check this box before you enter the proposed amended mark.

* Click the appropriate circle to indicate the Mark type: ☒ [Standard Characters](#) ☐ [Special Form \(Stylized and/or Design\)](#) ☐ [Sound Mark](#)

Use this section if you wish to modify a word(s), letter(s), punctuation, and/or number(s) with **no** design element **and** without claim to any particular font style, size or color.

Add/Modify the [Standard Characters](#) mark here: (Note: The entry can be in capital letters, lower case letters, or a combination thereof.)

Preview USPTO-Generated Image

NOTE: After previewing the USPTO-generated image, if you object to the display of the mark, then you must use "**Special Form (Stylized and/or Design)**" option. Therein, you could attach your own image file and check a box to claim standard characters. However, the appropriateness of the standard character claim would later be determined as part of the examination of the application. For how the USPTO determines what the display of the entered mark will be, click [here](#).

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Owner Information

Instructions:

1. **Update the mailing address**, if needed. The address entered on this page is publicly viewable in the USPTO's [TSDR](#) database and is presumed to be the owner's/holder's domicile.
2. **Update a domicile address that is not the same as the mailing address**: Use the [Change Address or Representation](#) form to provide or update a separate domicile address, which is not viewable in TSDR.

* Owner/Holder	 [If an individual, use the following format: Last Name, First Name Middle Initial or Name, if applicable]			
☐ DBA (doing business as) ☐ AKA (also known as) ☐ TA (trading as) ☐ Formerly				
* Entity Type ☐ Individual ☐ Corporation ☒ Limited Liability Company ☐ Partnership ☐ Limited Partnership ☐ Joint Venture ☐ Sole Proprietorship ☐ Trust ☐ Estate ☐ Other	<table><tr><td rowspan="2">State or Country/Region/Jurisdiction/U.S. Territory Where Legally Organized</td><td>If U.S. Company </td></tr><tr><td>OR If non-U.S. Company </td></tr></table> Note: You may correct an error or omission in the original listing. However, if the State/Country of Incorporation has actually changed, you should file an assignment document form PTO-1594.	State or Country/Region/Jurisdiction/U.S. Territory Where Legally Organized	If U.S. Company 	OR If non-U.S. Company
State or Country/Region/Jurisdiction/U.S. Territory Where Legally Organized	If U.S. Company 			
	OR If non-U.S. Company 			
Internal Address				
* Street Address (Entered address is viewable in the USPTO's TSDR database. This address must be capable of receiving mail. The USPTO presumes this address is the owner's/holder's domicile . If it is not, enter the domicile address on the Change Address or Representation form.)	 NOTE: You must limit your entry here, and for all remaining fields within this overall section, to no more than 40 characters (the storage limit for the USPTO database). You may need to abbreviate some words, e.g., St. instead of Street. Failure to do so may result in an undeliverable address, due to truncation at the 40 character limit.			
* City	 NOTE: You must limit your entry here to no more than 22 characters.			
* State (Required for U.S. owners/holders only)	 NOTE: You must include as part of the "City" entry any information related to geographical regions (e.g., provinces) not found in the dropdown lists for "States" or "Countries." Enter the city and then the geographical region, separated by a comma (e.g., Toronto, Ontario). In most instances, you will then also have to select the country within which the region is found, below.			
* Country/Region/Jurisdiction/U.S. Territory				
* Zip/Postal Code (Required for U.S. and certain international addresses)				
Phone Number				
Fax Number				
* Email Address	 The owner/holder is required to provide an email address and keep that address current with the USPTO. If the owner/holder is represented by a U.S.-licensed attorney, only the attorney's email address will be used for correspondence by the USPTO. NOTE: The owner/holder or the owner's/holder's attorney acknowledges that he or she is solely responsible for receiving USPTO emails. Additionally, the owner/holder or the owner's/holder's attorney is responsible for periodically checking the status of the application/registration using the Trademark Status			

Continuation of the Office's policy of transparency is responsible for periodically checking the status of the application/registration using the [Publication Status & Document Retrieval \(TSDR\)](#) system. USPTO notices and office actions issued in this application/registration can be viewed online using [TSDR](#). The USPTO is not responsible for any failure to receive a USPTO-issued email due to the receiver's security or anti-spam software, or any problems with the receiver's email system.

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ATTORNEY INFORMATION	
* Attorney Name	You must use the Change Address or Representation to change the attorney name.
Firm Name	
Docket/Reference Number	 NOTE: You must limit your entry here to no more than 12 characters.
* Bar Membership	* Year of Admission * U.S. State/Commonwealth/Territory * Membership Number You must enter "N/A" or a membership number if your U.S. state, commonwealth, or territory issues one. This number is not viewable in TSDR. You must limit your entry here to no more than 40 alphanumeric characters. ☒ * The attorney of record is an active member in good standing of the bar of the highest court of a U.S. state, the District of Columbia, or any U.S. Commonwealth or territory.
Other Appointed Attorney(s)	
Recognized Canadian Attorney/Agent	
Internal Address	
* Street Address	 NOTE: You must limit your entry here, and for all remaining fields within this overall section (except City, see <i>below</i>), to no more than 40 characters (the storage limit for the USPTO database). You may need to abbreviate some words, e.g., St. instead of Street. Failure to do so may result in an undeliverable address, due to truncation at the 40 character limit.
* City	 NOTE: You must limit your entry here to no more than 22 characters.
* State (Required for U.S. addresses)	 NOTE: You must include as part of the "City" entry any information related to geographical regions (e.g., provinces) not found in the dropdown lists for "States" or "Countries." Enter the city and then the geographical region, separated by a comma (e.g., Toronto, Ontario). In most instances, you will then also have to select the country within which the region is found, below.
* Country/Region/Jurisdiction/U.S. Territory	
* Zip/Postal Code (Required for U.S. and certain international addresses)	
Phone Number	
Fax Number	
* Email Address	The appointed attorney's email address must be provided and kept current with the USPTO. NOTE: The owner/holder or the applicant owner's/holder's attorney acknowledges that he or she is solely responsible for receiving USPTO emails. Additionally, the owner/holder or the applicant owner's/holder's attorney is responsible for periodically checking the status of the application/registration using the Trademark Status & Document Retrieval (TSDR) system. USPTO notices and office actions issued in this application/registration can be viewed online using TSDR. The USPTO is not responsible for any failure to receive a USPTO-issued email due to the receiver's security or anti-spam software, or any problems with the receiver's email system.

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NEW CORRESPONDENCE INFORMATION

To make changes to the **Primary Email Address for Correspondence** below, either

- (1) return to the Owner Information section (if no attorney has been appointed) and enter the change, or
- (2) use the Attorney Information section of the form to enter the change (if an attorney has been appointed).

Name

Primary Email Address for Correspondence:

Secondary Email Address(es) (Courtesy Copies):

Enter up to 4 addresses, separated by either a **semicolon** or a **comma**.

Email Address

Only the Primary Email Address for Correspondence is used for official communication by the USPTO. If an attorney has been appointed, the USPTO will correspond **ONLY** with the appointed attorney; otherwise the USPTO will correspond with the owner/holder. The owner/holder or the appointed attorney must keep this email address current with the USPTO.

NOTE: I understand that (1) a valid email address must be maintained by the owner/holder and the applicant owner's/holder's attorney, if appointed, for correspondence and (2) all official trademark correspondence must be submitted via the Trademark Electronic Application System (TEAS).

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DECLARATION SIGNATURE

If a declaration is required, the declaration must be signed by someone who is a "proper party to sign on behalf of the applicant" under [Trademark Rule 2.33](#). The information for the Response Signature section must always be entered.

Click to choose ONE [signature method](#):

☒ Sign electronically [directly](#) on this petition form ☐ Email [Text Form](#) to second party for electronic signature ☐ [Handwritten pen-and-ink signature](#)

NOTE: To electronically sign this document, enter any alpha/numeric characters (letters/numbers) of **your choosing**, preceded and followed by the forward slash (/) symbol. Most signatories enter their name between the two forward slashes; examples of acceptable "signatures" include: /john doe/; /jd/; or /123-4567/.

DECLARATION: The signatory being warned that willful false statements and the like are punishable by fine or imprisonment, or both, under 18 U.S.C. § 1001, and that such willful false statements and the like may jeopardize the validity of the application or submission or any registration resulting therefrom, declares that, if the applicant submitted the application or allegation of use (AOU) unsigned, all statements in the application or AOU and this submission based on the signatory's own knowledge are true, and all statements in the application or AOU and this submission made on information and belief are believed to be true.

STATEMENTS FOR UNSIGNED SECTION 1(a) APPLICATION/AOU: If the applicant filed an unsigned application under 15 U.S.C. § 1051(a) or AOU under 15 U.S.C. § 1051(c), the signatory additionally believes that: the applicant is the owner of the mark sought to be registered; the mark is in use in commerce and was in use in commerce as of the filing date of the application or AOU on or in connection with the goods/services/collective membership organization in the application or AOU; the original specimen(s), if applicable, shows the mark in use in commerce as of the filing date of the application or AOU on or in connection with the goods/services/collective membership organization in the application or AOU; **for a collective trademark, collective service mark, collective membership mark application, or certification mark application**, the applicant is exercising legitimate control over the use of the mark in commerce and was exercising legitimate control over the use of the mark in commerce as of the filing date of the application or AOU; **for a certification mark application**, the applicant is not engaged in the production or marketing of the goods/services to which the mark is applied, except to advertise or promote recognition of the certification program or of the goods/services that meet the certification standards of the applicant. **To the best of the signatory's knowledge and belief, no other persons, except, if applicable, authorized users, members, and/or concurrent users, have the right to use the mark in commerce, either in the identical form or in such near resemblance as to be likely, when used on or in connection with the goods/services/collective membership organization of such other persons, to cause confusion or mistake, or to deceive.**

STATEMENTS FOR UNSIGNED SECTION 1(b)/SECTION 44 APPLICATION AND FOR SECTION 66(a) COLLECTIVE/CERTIFICATION MARK APPLICATION: If the applicant filed an unsigned application under 15 U.S.C. §§ 1051(b), 1126(d), and/or 1126(e), or filed a collective/certification mark application under 15 U.S.C. § 1141f(a), the signatory additionally believes that: **for a trademark or service mark application**, the applicant is entitled to use the mark in commerce on or in connection with the goods/services specified in the application; the applicant has a bona fide intention to use the mark in commerce and had a bona fide intention to use the mark in commerce as of the application filing date; **for a collective trademark, collective service mark, collective membership mark, or certification mark application**, the applicant has a bona fide intention, and is entitled, to exercise legitimate control over the use of the mark in commerce and had a bona fide intention, and was entitled, to exercise legitimate control over the use of the mark in commerce as of the application filing date; the signatory is properly authorized to execute the declaration on behalf of the applicant; **for a certification mark application**, the applicant will not engage in the production or marketing of the goods/services to which the mark is applied, except to advertise or promote recognition of the certification program or of the goods/services that meet the certification standards of the applicant. **To the best of the signatory's knowledge and belief, no other persons, except, if applicable, authorized users, members, and/or concurrent users, have the right to use the mark in commerce, either in the identical form or in such near resemblance as to be likely, when used on or in connection with the goods/services/collective membership organization of such other persons, to cause confusion or mistake, or to deceive.**

* Signature		* Date Signed	(MM/DD/YYYY)
* Signatory's Name	 NOTE: The signatory must provide their first and last name. Use the following format: Last Name, First Name Middle Initial or Name, if applicable.		
* Signatory's Position	 Enter appropriate title or nature of relationship to the owner/holder. If the signer is - An individual owner/holder , enter "Owner" or "Holder" as appropriate. - Joint individual owners/holders , enter "Owners" or "Holders" as appropriate. - A business entity authorized signatory, enter official title; e.g., "President" (if a corporation), "General Partner" (if a partnership), or "Principal" (if a limited liability company). - A U.S.-licensed attorney , enter "Attorney of record," and if not specified in the application or prior communications, specify at least one state bar admission, e.g., "Attorney of record, New York Bar member." Also, if the signing attorney is from the same U.S. firm as the attorney of record, but was not listed in the original filing and is not otherwise of record, also include law firm name, e.g., Associate Attorney, Smith, Jones & Davis, Virginia Bar member.		

<u>Signatory's Phone Number</u>	
--	----------------------

Add Signatory

RESPONSE SIGNATURE

Click to choose ONE [signature method](#):

- ☒ Sign electronically [directly](#) on this response form ☐ Email [Text Form](#) to second party for electronic signature

NOTE: Although a possible combination as selected on the form, the following signing method must NOT be used: declaration signed directly and response signed through the email text form approach.

NOTE: To electronically sign this document, enter any alpha/numeric characters (letters/numbers) of **your choosing**, preceded and followed by the forward slash (/) symbol. Most signatories enter their name between the two forward slashes; examples of acceptable "signatures" include: /john doe/; /jd/; or /123-4567/.

*You **must** click **one** of the three buttons below to confirm that you are legally authorized to sign this form based on the trademark rules governing representation of others before the USPTO.

If you have a U.S.-licensed attorney representing you in this matter, only your attorney can sign this response.

☐ **Owner/Holder who is not represented by an attorney (pro se):** I hereby confirm that

- I am **not represented** by an attorney in this matter, and am either: (1) the owner(s)/holder(s); or (2) a person or persons(s) with legal authority to bind the owner(s)/holder(s); and
- If I had previously been represented by an attorney in this matter, either I revoked their power of attorney by filing a signed revocation with the USPTO or the USPTO has granted this attorney's withdrawal request.

ADVISORY: Click the above first button *only* if you are the owner(s)/holder(s) or legally authorized to bind the owner(s)/holder(s); such as an officer of the owner/holder corporation or association, or a general partner of the owner/holder partnership.

☐ **Authorized U.S.-Licensed Attorney:** I hereby confirm that

- I am a U.S.-licensed attorney who is an active member in good standing of the bar of the highest court of a U.S. state (including the District of Columbia and any U.S. Commonwealth or territory);
- I am currently the trademark owner's/holder's attorney or an [associate](#) thereof;
- To the best of my knowledge, if prior to my appointment another U.S.-licensed attorney **not currently associated with my company/firm** previously [represented](#) the owner/holder in this matter:
 - the owner/holder has revoked their power of attorney by filing a signed revocation or substitute power of attorney with the USPTO;
 - the USPTO has granted that attorney's withdrawal request;
 - the owner/holder has filed a power of attorney appointing me in this matter; or
 - the owner/holder's appointed U.S.-licensed attorney has filed a power of attorney appointing me as an associate attorney in this matter.

☐ **Authorized Canadian Trademark Attorney/Agent:** I hereby confirm that

- An authorized U.S.-licensed attorney has been appointed to represent the owner/holder;
- I have been granted reciprocal recognition under 37 C.F.R. §11.14(c)(1) by the USPTO's Office of Enrollment and Discipline; and
- I am an authorized signatory based on 37 C.F.R. §11.14(c)(2).

ADVISORY: Foreign attorneys (other than authorized Canadian attorneys/agents) may not sign responses and are prohibited from representing a trademark owner/holder before the USPTO in trademark matters.

NOTE: If more than one owner/holder, **ALL** must sign the overall submission.

* <u>Signature</u>		* <u>Date Signed</u>	(MM/DD/YYYY)
* <u>Signatory's Name</u>	 NOTE: The signatory must provide their first and last name. Use the following format: Last Name, First Name Middle Initial or Name, if applicable.		
* <u>Signatory's Position</u>	 Enter appropriate title or nature of relationship to the owner/holder. If the signer is - An individual owner/holder , enter "Owner" or "Holder" as appropriate. - Joint individual owners/holders , enter "Owners" or "Holders" as appropriate(all must sign the form). - A business entity authorized signatory, enter official title; e.g., "President" (if a corporation),"General Partner" (if a partnership), or "Principal" (if a limited liability company). - A U.S.-licensed attorney , enter "Attorney of record," and if not specified in the application or prior communications, specify at least one state bar admission, e.g., "Attorney of record, New York Bar member." Also, if the signing attorney is from the same U.S. firm as the attorney of record, but was not listed in the original filing and is not otherwise of record, also include law firm name, e.g., Associate Attorney, Smith, Jones & Davis, Virginia Bar member.		
<u>Signatory's Phone Number</u>			

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Validation Page

On Thu Mar 12 09:05:08 ET 2020 you completed all mandatory fields and successfully validated the form. It has NOT been filed to the USPTO at this point. Please complete all steps below to submit the form.

■ **STEP 1:** Review the data in various formats, by clicking on the phrases under Response Data. Use the print function within your browser to print these pages for your own records.

NOTE: It is important that you review this information for accuracy and completeness now. Corrections after submission may not be permissible, thereby possibly affecting your legal rights.

WARNING: After submission of this form, some characters may be displayed in a manner different from what was originally entered because various USPTO systems cannot display/print certain characters. The USPTO will convert any problematic character(s) to the closest acceptable equivalent(s). Visit the USPTO's website for a [complete table highlighting which characters will be converted](#).

Response Data				
■ Input	■ Evidence	■ Mark	■ XML File	■ Textform

■ **STEP 2:** If there are no errors and you are ready to file, confirm the **Primary Email Address for Correspondence**, displayed below. To make changes to this email address, use the navigation buttons below to return to the appropriate page in the form and update either the attorney's email address, if appointed, or the applicant owner's/holder's email address. **Courtesy copies** are also permitted and these email address(es) are displayed below. To update these addresses, use the navigation buttons below to return to the Correspondence Information page and enter the changes.

After you submit the form, the USPTO will send an acknowledgment of receipt to the following email address(es):

Primary Email Address for Correspondence:	
Secondary Email Address(es) (Courtesy Copies):	

■ **STEP 3:** To download and save the form data, click on the [Save Form](#) button at the bottom of this page. The information will be saved to your local drive. To begin the submission process with saved data, you must open a new form, and click on the "Browse/Choose File" button displayed on the initial form wizard page. Clicking on the "Continue" button at the bottom of that first page will then properly open the saved version of your form.

■ **STEP 4:** Read and check the following:

Important Notice:

1. I am aware that this response, to be considered "complete," should address each issue requiring response in the Office action or any previous Office action incorporated by reference, and, in addition, that this response does not consist only of a signature (unless the missing signature was the sole issue raised in the Office action).
2. I am aware that, if a fee was required, once I submit this form, the USPTO will not refund the fee, because it is a processing fee for the USPTO's substantive review.
3. I am aware that all information I submit to the USPTO at any point in the application and/or registration process will become public record, including my name, phone number, email address, and street address. By filing this document, I acknowledge and agree that **I HAVE NO RIGHT TO CONFIDENTIALITY** in the information disclosed. The public will be able to view this information in the USPTO's on-line databases and through internet search engines and other on-line databases. This information will remain public even if the application is abandoned or any registration is surrendered, cancelled, or expired. To maintain confidentiality of banking or credit card information, only enter payment information in the secure portion of the site after validating your form. For any information that may be subject to copyright protection, by submitting it to the USPTO, the filer is representing that he or she has the authority to grant, and is granting, the USPTO permission to make the information available in its on-line database and in copies of the application or registration record.
4. I am aware that private companies **not** associated with the USPTO often use trademark application and registration information from the USPTO's databases to [mail or email trademark-related solicitations](#) (samples of non-USPTO solicitations included).

* ☐ If you have read and understand the above notice, please check the box before you click on the **Submit** button.

■ **STEP 5:** If you are ready to file:

Click on the Submit button at the bottom of this page to complete the filing process.

WARNING: After clicking the button, you can **NOT** return to the form to modify the data. If you are not prepared to complete the process now, you should select the "Save Form" option and then complete the Submit process later.

FEE PAYMENT (if required): Screens for entering payment information will follow after clicking the Submit button. Following successful entry of the payment information, you can complete the submission to the USPTO.

You must complete the payment process within 30 minutes of accessing the payment screen.

A complete transaction will result in a screen that says **SUCCESS!** Within 24 hours, an email acknowledgment will also be sent. If you are not prepared to complete the process now, you should select the "Save Form" option to save your form, and then complete the Submit process later. Or, if you have discovered any

error, use the "Go Back to Modify" button to make a correction.

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